

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR SEPTEMBER 24, 2026, AT 8:30 A.M.

Defendant now timely moves to set aside the default and default judgment entered against her pursuant to Code of Civil Procedure section 473, subdivision (d) on the grounds the default and default judgment are void. (*California Capital Ins. Co. v. Hoehn* (2024) 17 Cal.5th 207, 225.)

Here, defendant presents evidence that she was never served with the summons and complaint. At the time of service, she resided in Walnut Creek rather than in Lincoln. Moreover, the address listed in the proof of service was her parent's former real property, that they sold in 2012. Additionally, defendant—at the time of service—was 25 years old, weighed 115lbs, and had hazel eyes. None of these match the description in the proof of service.

Accordingly, the default and default judgment are void as service was improper. (*California Capital Ins. Co. v. Hoehn* (2024) 17 Cal.5th 207, 214–15.) The default entered on August 21, 2014, and default judgment entered on August 28, 2014, are hereby set aside.

The court sets an Order to Show Cause re: Dismissal for **October 29, 2026, at 9:00 a.m. in Department 3.**

2. M-CV-0085411 RIEDEL, BRUCE v. COURTESY TOWING

Defendant New Alpha Three, Inc. dba D&M Courtesy Towing's Motion to Compel Depositions of Plaintiffs

Defendant's unopposed motion to compel plaintiffs Bruce Riedel and Susan Riedel's attendances at deposition is granted. (Code Civ. Proc., § 2025.450.) Plaintiffs Bruce Riedel and Susan Riedel shall appear for a deposition within 20 days after service of the order after hearing.

The request for sanctions is denied because it is unsupported by a declaration or other evidence.

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